

CIVIL PETITION FOR EXPUNGEMENT UNDER W. VA. CODE SEC. 61-11-25

IN THE CIRCUIT COURT OF KANAWHA COUNTY, WEST VIRGINIA

Petitioner: Alexandria Montgomery-Vandenberg Example

Underlying court: Circuit Court

Underlying criminal case: SYNTH-25-F-002

Civil action number (assigned by circuit clerk):

I request expungement of the charges identified in the attached statutory supplement and custodian schedule. I state:

1. I completed deferred adjudication under W. Va. Code Sec. 61-11-22a

Program began: 02/01/2025

Full successful completion date: 07/10/2026

Order dismissing the charges: 07/16/2026

2. All charges originally brought are listed in the supplement, including charges dropped along the way. All arose from the same transaction or occurrence.

Incident account: All listed charges arose from the same synthetic incident on January 10, 2025.

3. I have no prior felony conviction. No related proceeding remains pending. The dismissal was not in exchange for a guilty plea to another offense.

4. The deferred adjudication ended with dismissal following full successful completion, not a plea to a lesser offense. The alleged victim of none of the listed charges was a family or household member within Sec. 48-27-204.

5. The statutory 60-day period runs from the order of dismissal. Earliest filing date: 09/14/2026

Date used for this timing calculation: 09/14/2026

Elapsed calendar days: 60

6. The certified dismissal order, signed diversion agreement or entered deferred-adjudication order, and successful-completion record must accompany this petition. The exhibit schedule identifies each required record.

7. I request an order expunging the eligible records of all charges originally brought from the same transaction or occurrence, subject to the exclusions and inspection limits of Sec. 61-11-25. I request no relief concerning criminal investigation reports or Division of Motor Vehicles records.

There is no filing fee or assessed cost for an action under Sec. 61-11-25(g).

Printed name: Alexandria Montgomery-Vandenberg Example

Address: 9876 Synthetic Long Residence Lane, Charleston, WV 25301

Telephone: 304-555-0142

Email: alexandria@example.org

Petitioner signature:

Date signed:

STATUTORY SUPPLEMENT AND COMPLETE CHARGE SCHEDULE
IN THE CIRCUIT COURT OF KANAWHA COUNTY, WEST VIRGINIA

Petitioner: Alexandria Montgomery-Vandenberg Example

Underlying court: Circuit Court

Underlying criminal case: SYNTH-25-F-002

Civil action number (assigned by circuit clerk):

Selected program: deferred adjudication under W. Va. Code Sec. 61-11-22a

Arrest or citation date: 01/10/2025

Arresting agency: Synthetic Kanawha Arresting Agency

All charges originally brought follow; no charge has been dropped from this schedule to fit the page.

Count 1

Offense: Synthetic nonviolent offense count 1

Code section: 61-3-13

Offense level: felony

Criminal case: SYNTH-25-F-002

Disposition: Dismissed after full successful program completion

Dismissal order date: 07/16/2026

Count 2

Offense: Synthetic nonviolent offense count 2

Code section: 61-3-13

Offense level: felony

Criminal case: SYNTH-25-F-002

Disposition: Dismissed after full successful program completion

Dismissal order date: 07/16/2026

Count 3

Offense: Synthetic nonviolent offense count 3

Code section: 61-3-13

Offense level: felony

Criminal case: SYNTH-25-F-002

Disposition: Dismissed after full successful program completion

Dismissal order date: 07/16/2026

Count 4

Offense: Synthetic nonviolent offense count 4

Code section: 61-3-13

Offense level: felony

Criminal case: SYNTH-25-F-002

Disposition: Dismissed after full successful program completion

Dismissal order date: 07/16/2026

Count 5

Offense: Synthetic nonviolent offense count 5

Code section: 61-3-13

Offense level: felony

Criminal case: SYNTH-25-F-002

Disposition: Dismissed after full successful program completion

Dismissal order date: 07/16/2026

Count 6

Offense: Synthetic nonviolent offense count 6

Code section: 61-3-13

Offense level: felony

Criminal case: SYNTH-25-F-002

Disposition: Dismissed after full successful program completion

Dismissal order date: 07/16/2026

Same transaction or occurrence: All listed charges arose from the same synthetic incident on January 10, 2025.

Deferred-adjudication recital: I reviewed the allegations and the Sec. 48-27-204 relationship definition. None of the alleged victims was a family or household member. None of the requested charges falls within the family/household deferred-adjudication exclusion in Sec. 61-11-25(a).

The dismissal was not exchanged for a guilty plea to another offense. No conviction on a lesser offense is offered as a dismissal. No criminal investigation report or excluded not-guilty-by-reason-of-mental-condition record is requested.

Printed name: Alexandria Montgomery-Vandenberg Example

Address: 9876 Synthetic Long Residence Lane, Charleston, WV 25301

Telephone: 304-555-0142

Email: alexandria@example.org

Petitioner signature:

Date signed:

PROPOSED ORDER - NOT ENTERED

IN THE CIRCUIT COURT OF KANAWHA COUNTY, WEST VIRGINIA

Petitioner: Alexandria Montgomery-Vandenberg Example

Underlying court: Circuit Court

Underlying criminal case: SYNTH-25-F-002

Civil action number (assigned by circuit clerk):

This proposed order is submitted for the court's consideration. It has no effect unless the court acts and signs it.

Court disposition and findings:

If the court grants the petition under Sec. 61-11-25, the expungement shall cover the eligible records of the charges specifically identified in the statutory supplement for underlying case SYNTH-25-F-002

The court directs the identified custodians to carry out the granted relief consistent with Sec. 61-11-25. Criminal investigation reports, excluded records and Division of Motor Vehicles records are not included in the requested relief.

Any later inspection remains governed by the applicable statutory procedure.

Court directions to clerk and custodians:

Date entered:

Circuit judge signature:

CERTIFICATE OF SERVICE - COMPLETE ONLY AFTER ACTUAL SERVICE

IN THE CIRCUIT COURT OF KANAWHA COUNTY, WEST VIRGINIA

Petitioner: Alexandria Montgomery-Vandenberg Example

Underlying court: Circuit Court

Underlying criminal case: SYNTH-25-F-002

Civil action number (assigned by circuit clerk):

Prepared for: Alexandria Montgomery-Vandenberg Example

Recipient office: Kanawha County Prosecuting Attorney Office

Recipient address to verify before service: 300 Synthetic Service Street, Charleston WV 25301

I certify that I served the civil petition, statutory supplement, proposed order and attached supporting exhibits on the recipient identified above by the actual method and on the actual date entered below.

Actual recipient or person accepting service:

Actual method of service:

Actual date of service:

Signature of person who performed service:

Do not sign this certificate or supply a service date before service occurs. Confirm the accepted civil service method and any additional recipients with the circuit clerk.

RECORD CUSTODIANS AND REQUIRED SUPPORTING EXHIBITS
IN THE CIRCUIT COURT OF KANAWHA COUNTY, WEST VIRGINIA

Petitioner: Alexandria Montgomery-Vandenberg Example

Underlying court: Circuit Court

Underlying criminal case: SYNTH-25-F-002

Civil action number (assigned by circuit clerk):

Custodian: Synthetic Kanawha Arresting Agency

Address: 100 Example Records Street, Charleston WV 25301

Custodian: Synthetic Court Records Custodian

Address: 200 Example Clerk Street, Charleston WV 25301

Exhibit A: Certified order dismissing the original charges after full successful program completion. Obtain it from the court clerk; confirm underlying case, dismissal basis and date.

Exhibit B: Signed prosecutorial pretrial diversion agreement OR entered deferred-adjudication order, according to the selected program. Obtain the signed agreement from the prosecutor or the entered order from the clerk.

Exhibit C: Court record establishing full successful completion and the resulting dismissal basis. Obtain it from the clerk.

REQUIRED_BEFORE_FILING: All three actual records must be received, checked against the petition and attached. A combined record may establish more than one fact, but every required role must be identified.

Prepared for: Alexandria Montgomery-Vandenberg Example

WEST VIRGINIA DIVERSION / DEFERRED-ADJUDICATION FILING GUIDE

Prepared for: Alexandria Montgomery-Vandenberg Example

Current civil petition and venue

File a civil petition in the circuit court of Kanawha County, where the charges were filed, even if the original case was in magistrate or municipal court. The civil action number is assigned by the circuit clerk; do not copy the criminal case number into that blank. This packet uses the adopted current-law custom petition and supplement. It does not use the old SCA-C903 text.

The selected program is deferred adjudication under W. Va. Code Sec. 61-11-22a. Confirm that program type from the actual signed agreement or entered order, not memory. Unknown or disputed program type requires legal help.

Supporting records are required before filing

Obtain the certified dismissal order; the signed diversion agreement or entered deferred-adjudication order; and the court record showing full successful completion. Ask the entering court clerk for court records and the prosecutor for the signed diversion agreement. Attach the actual records identified as Exhibits A, B and C. Compare their case identity, program, completion and dismissal dates against every claim in this packet.

Synthetic diagnostics are never real orders or certificates. The review samples carry three conspicuous diagnostic pages to show attachment roles. Remove and replace them with actual supporting records before a real filing; the filing validator rejects synthetic pages even if other fields are relabeled.

Sixty-day timing and all charges

The dismissal order date supplied here is 07/16/2026. Sixty calendar days later is 09/14/2026. File no earlier. Confirm the date on the actual order and any court calendar rule with the clerk. A completion date is not a substitute for the dismissal date.

List every charge originally brought, including charges dropped along the way. All charges sought must arise from the same transaction or occurrence. This packet includes complete repeated count rows and allows additional pages; do not omit charges to fit a template.

Eligibility boundaries and limits

Any prior felony conviction bars this route. Stop for disputed or incomplete compliance, an unexpired program, pending related proceedings, an uncertain same-incident connection, or a dismissal exchanged for a guilty plea to another offense. A deferred adjudication ending with a conviction for a lesser offense is outside this dismissal route.

For deferred adjudication, violations of sections 61-2-28(a), 61-2-28(b), 61-2-9(a), 61-2-9a, 61-2-9(b) or 61-2-9(c) cannot be expunged under this route where the alleged victim is a family or household member under section 48-27-204. This carve-out attaches to deferred adjudication, not pretrial diversion. If any deferred-adjudication victim may be a family or household member, obtain legal help.

Pretrial diversion under section 61-11-22 generally may not exceed 24 months and excludes DUI under section 17C-5-2. Deferred adjudication may run up to three years for a felony and two years for a misdemeanor. This packet is not a section 17C-5-2b DUI route and seeks no DMV relief.

Criminal investigation reports and the excluded section 15-12-1 mental-condition acquittal records are outside this relief. Obtain legal assistance for immigration, firearm, federal, military, tribal or out-of-state questions.

Sign, serve and file

Review and personally sign the petition and supplement. The adopted route identifies no notarization requirement for these motions. Sign and date the certificate only after actual service; fill the real recipient, method and service date then. The supplied prosecutor office address must be checked against the current county address before service.

Serve the county prosecuting attorney with the civil petition, supplement and accompanying papers. Confirm civil service mechanics and any required additional recipients with the circuit clerk. File the service certificate with the packet when the service it certifies has occurred. The custodian list identifies record holders and does not certify they have been served.

No filing fee is charged and no costs are assessed for an action under section 61-11-25(g), so no fee-waiver component is needed. File with the circuit clerk, using the actual completed exhibits and the proposed order. The judge and clerk complete their own blanks.

Hearing and order

A hearing is discretionary. If the court sets one, it notifies the prosecutor and arresting agency and permits a response. An opposed or contested hearing requires legal help; the initial packet may still be prepared. Keep copies of your filed papers and any signed order.

An unsigned proposed order does nothing. If relief is granted, follow the entered order and confirm records were processed with the clerk and identified custodians. The statute governs sealing, certification, legal effect and later inspection; do not assume every private database or excluded record disappears.

Review sample

All sample personal and case facts are fictional. Do not file this sample packet or any synthetic exhibit.

SYNTHETIC DIAGNOSTIC - NOT A COURT RECORD

This page is not an entered order, certified copy, signed diversion agreement or completion record. It demonstrates the attachment role for a fictional review fixture and cannot satisfy the actual filing gate.

Synthetic participant: Alexandria Montgomery-Vandenberg Example

Synthetic case: SYNTH-25-F-002

Input role: final_disposition

Program modeled: deferred adjudication under W. Va. Code Sec. 61-11-22a

Sample dismissal date: 07/16/2026

Replace this diagnostic with the actual participant-obtained supporting record before any real filing. No court signature, seal or certification is simulated.

SYNTHETIC DIAGNOSTIC - NOT A COURT RECORD

This page is not an entered order, certified copy, signed diversion agreement or completion record. It demonstrates the attachment role for a fictional review fixture and cannot satisfy the actual filing gate.

Synthetic participant: Alexandria Montgomery-Vandenberg Example

Synthetic case: SYNTH-25-F-002

Input role: supporting_prior_order_or_agreement

Program modeled: deferred adjudication under W. Va. Code Sec. 61-11-22a

Sample dismissal date: 07/16/2026

Replace this diagnostic with the actual participant-obtained supporting record before any real filing. No court signature, seal or certification is simulated.

SYNTHETIC DIAGNOSTIC - NOT A COURT RECORD

This page is not an entered order, certified copy, signed diversion agreement or completion record. It demonstrates the attachment role for a fictional review fixture and cannot satisfy the actual filing gate.

Synthetic participant: Alexandria Montgomery-Vandenberg Example

Synthetic case: SYNTH-25-F-002

Input role: completion_record

Program modeled: deferred adjudication under W. Va. Code Sec. 61-11-22a

Sample dismissal date: 07/16/2026

Replace this diagnostic with the actual participant-obtained supporting record before any real filing. No court signature, seal or certification is simulated.